

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #04	CCRB Case #: 201504826	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 06/02/2015 11:20 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/2/2016	Precinct: 94		
Date/Time CV Reported Tue, 06/02/2015 1:58 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 06/12/2015 3:55 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Eric Meza	05566	925744	WARRSEC
2. SGT Raymond Tomins	05336	902480	WARRSEC
3. An officer			WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Thomas Toscano	02841	933420	WARRSEC
2. DT3 William Brown	98	947989	WARRSEC
3. DT3 William Schmidt	03322	929145	WARRSEC
4. DT3 Joseph Viggiano	06676	919824	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Eric Meza	Force: Det. Eric Meza pointed his gun at § 87(2)(b)	A . Exonerated
B . DT3 Eric Meza	Discourtesy: Det. Eric Meza spoke discourteously to § 87(2)(b)	B . Exonerated
C . SGT Raymond Tomins	Force: Sgt. Raymond Tomins used physical force against § 87(2)(b)	C . Exonerated
D . DT3 Eric Meza	Abuse: Det. Eric Meza damaged § 87(2)(b)'s property.	D . Exonerated
E . DT3 Eric Meza	Force: Det. Eric Meza struck § 87(2)(b) with a baton.	E . Exonerated
F . DT3 Eric Meza	Force: Det. Eric Meza used physical force against § 87(2)(b)	F . Exonerated
G . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	G . Officer(s) Unidentified

Case Summary

On June 2, 2015, Sgt. Raymond Tomins of the Brooklyn North Warrant Squad filed this complaint with IAB via telephone on behalf of an injured prisoner, § 87(2)(b). The complaint was forwarded to the CCRB on June 12, 2015 via IAB log #2015-16132.

On June 2, 2015, § 87(2)(b) was at the home of his girlfriend's mother, § 87(2)(b) at § 87(2)(b) in Brooklyn. At approximately 11:20 a.m., § 87(2)(b) left the apartment to move the car that he had borrowed from § 87(2)(b) a friend of his girlfriend's. § 87(2)(b) was not present during the incident. When § 87(2)(b) walked up to the front driver's door, he noticed a plainclothes officer, Det. Eric Meza, running towards him. Det. Meza was pointing his gun at § 87(2)(b) and telling him not to move (**Allegation A**). § 87(2)(b) attempted to flee from Det. Meza by entering his car, turning on the ignition, and shifting into drive. Det. Meza and several additional officers, identified as Sgt. Tomins, Det. Thomas Toscano and Det. Joseph Viggiano, approached the driver's side, grabbed § 87(2)(b) by his left arm and torso, and attempted to pull him out. Det. Meza told § 87(2)(b) "Get the fuck out of the car" (**Allegation B**). While § 87(2)(b) did not offer any direct physical resistance to the officers, he refused to relinquish his grip on the steering wheel or the gear shifter.

When § 87(2)(b) could not initially be pulled out of the car, Sgt. Tomins punched him once on the right side of his face (**Allegation C**). Det. Meza then went around to the passenger's side of the car and broke through the front passenger's window using his asp (**Allegation D**). Det. Meza then climbed into the vehicle's back seat. From there, he struck § 87(2)(b) three times on the back of the head using his asp (**Allegation E**).

After Det. Meza struck § 87(2)(b) in the head, the officers at the driver door were able to pull § 87(2)(b) out of the car. He landed face-down on the street, where the officers quickly placed him in handcuffs. Several officers then dragged § 87(2)(b) bodily from the street to the sidewalk. One of the officers then kicked § 87(2)(b) in the lower back (**Allegation F**). One of the officers then called § 87(2)(b) a "piece of shit" (**Allegation G**).

§ 87(2)(b)
§ 87(2)(a) PHL § 18(6)
§ 87(2)(b) was eventually charged with § 87(2)(a)
§ 87(2)(b)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Video Evidence

The officers' struggle to apprehend § 87(2)(b) was captured on three separate security cameras, only one of which provided a clear vantage on the incident (See Board Review: Video Evidence). Clips from this video have been attached below in the analysis section.

Mediation, Civil and Criminal Histories

§ 87(2)(b)'s case was ineligible for mediation due to his arrest and his injuries. A notice of claim request was submitted to the Comptroller's office on October 6, 2015. It will be included in the case file upon receipt. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) was involved in one prior CCRB complaint. § 87(2)(b) _____

- Det. Meza has been a member of the service for fifteen years, and there are no substantiated CCRB allegations against him. Three previous gun point and discourtesy allegations have been unsubstantiated against him. These are the first baton, force or property damage allegations made against him.
- Sgt. Tomins has been a member of the service for twenty-three years, and there is one substantiated CCRB allegation against him. In case #201206370, an entry allegation was substantiated against Sgt. Tomins. He received charges. One previous force allegation was unsubstantiated against him.
- Det. Toscano has been a member of the service for twelve years and there are no substantiated CCRB allegations against him. This is the first allegation that has been made against Det. Toscano.

Potential Issues

- § 87(2)(b) could not be interviewed until approximately a month after his incident. § 87(2)(b) has been incarcerated at § 87(2)(b) on Rikers Island since his arrest on June 2, 2015. His criminal attorney, § 87(2)(b), was out of her office for several weeks after the incident, and asked that § 87(2)(b) not be interviewed until she had time to review his case in detail. She did not give permission to speak to § 87(2)(b) until July 8, 2015.
- § 87(2)(b) initially declined to allow the CCRB access to his medical records. During his initial interview on July 17, 2015, § 87(2)(b) declined to sign medical release forms, stating that he wished to consult with his civil attorney first. § 87(2)(b) however, did not know his attorney's name or contact information. § 87(2)(b)'s girlfriend, § 87(2)(b), did not know the attorney's name, but stated that she would attempt to find out. On August 25, 2015, § 87(2)(b) stated that § 87(2)(b) no longer had a civil attorney. A follow-up visit was made to § 87(2)(b) at Rikers Island on September 9, 2015. He agreed to sign the medical release forms during his second visit. The relevant subpoenas were drafted and submitted later that day.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) alleged that the same officer who approached his car and pointed his gun also told him, “Get the fuck out of the car!” While all of the officers denied making this statement, Det. Meza identified himself as the officer who pointed his gun. Therefore, a discourtesy allegation has been pleaded against Det. Meza.
- § 87(2)(b) alleged that one of the officers who was trying to pull him out of the front seat of the car punched him in the face. He described this officer as a 6’ heavysset white male wearing a jersey with a sports logo on it. The officers stated that Sgt. Tomins, Det. Meza, Det. Toscano and Det. Viggiano all tried to pull § 87(2)(b) from the front seat at various points. They denied, however, that any officer struck § 87(2)(b). In the video of the incident, the driver’s seat is not visible, so the specific officers interacting with § 87(2)(b) there cannot be seen. Of the six officers seen on the video, however, only Sgt. Tomins is seen wearing a jersey with a logo on it (See Board Review: § 87(2)(b) Video). Sgt. Tomins, a 6’, 260-pound white male, matches § 87(2)(b)’s description. Therefore, a force allegation has been pleaded against him.
- § 87(2)(b) alleged that several of the officers dragged him bodily along the ground from the street to the sidewalk after he was handcuffed. Once he arrived at the sidewalk, one of these officers kicked him in the lower back. § 87(2)(b) could not recall which officers dragged him, and did not see which of these officers kicked him. All of the officers interviewed denied dragging § 87(2)(b) after he was pulled from the vehicle. Det. Meza stated that after § 87(2)(b) was moved to the sidewalk, he kicked § 87(2)(b)’s leg out from beneath him in order to make him sit. He denied kicking § 87(2)(b) in the back, and denied that any other officers kicked § 87(2)(b). Video evidence confirms that Det. Meza alone kicked § 87(2)(b) in the leg after walking him to the sidewalk (See Board Review: § 87(2)(b) Video). Therefore, a force allegation has been pleaded against Det. Meza.
- § 87(2)(b) alleged that after he was kicked, an officer called him a “piece of shit.” He did not see which officer spoke, and was not able to identify the officer by the sound of his voice. All of the officers denied that any such statement was made to § 87(2)(b). No sound is recorded in any of the videos (See Board Review: Video Evidence). Therefore, a discourtesy allegation has been pleaded against “an officer” of the Warrant Squad.

Allegation A: Force – Det. Eric Meza pointed his gun at § 87(2)(b)

It is undisputed that Det. Meza drew and pointed his gun at § 87(2)(b) when he initially approached. Det. Meza was interviewed at the CCRB on August 20, 2015 (See Board Review: Det. Meza’s Statement). Det. Meza explained that he pointed his gun because § 87(2)(b) was holding something in his hand as Det. Meza approached. Det. Meza did not recall what the object was, and was unable to describe any aspect of its appearance during his interview. He did not specifically recall § 87(2)(b) holding any other objects in his hands, such as car keys. Det. Meza had also reviewed § 87(2)(b)’s arrest history before the incident, noting previous arrests for violent crimes including burglary and attempted murder of a police officer. Given § 87(2)(b)’s extensive arrest history, Det. Meza feared that the item might have been a weapon. He therefore drew and pointed his gun to guarantee his and his partners’ safety.

Sgt. Tomins and Det. Toscano were interviewed at the CCRB on August 5, 2015 and August 12, 2015, respectively (See Board Review: MOS Statements). Neither officer mentioned § 87(2)(b) holding any objects in his hand at the time of their approach, including car keys. Both officers, however, stated that § 87(2)(b) had an extensive history of arrests for violent offenses.

§ 87(2)(b)'s arrest history lists over sixty arrests, including thirteen for burglary, one for assaulting an officer, one for kidnapping, one for murder, and one for murder of a police officer (See Board Review: § 87(2)(b)'s Arrest History).

Officers are permitted broad authority to draw and display their weapons when they believe that their safety is in danger. PD v. Gliner, OATH Index 955/00 (2000) (See Board Review: Legal Reference).

§ 87(2)(g)
[REDACTED]

Therefore, it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B: Discourtesy – Det. Eric Meza spoke discourteously to § 87(2)(b)

It is undisputed that after he was first approached by the officers, § 87(2)(b) entered his car, turned on the ignition, and shifted into drive. He then refused to exit the vehicle when the officers attempted to pull him out.

§ 87(2)(b) was interviewed at OBCC on Rikers Island on July 17, 2015 (See Board Review: § 87(2)(b)'s Testimony). He alleged that after he got into the driver's seat, Det. Meza told him, "Get the fuck out of the car!" All of the officers interviewed denied that any profanity was used against § 87(2)(b) at any point during the incident.

During a stressful street encounter, an officer may use limited profanity within the context of a verbal command in order to gain cooperation. PD v. White, OATH Index 78667/03 (See Board Review: Legal Reference).

§ 87(2)(g)
[REDACTED]

Therefore, it is recommended that **Allegation B** be closed as **exonerated**.

Allegation C: Force – Sgt. Raymond Tomins used physical force against § 87(2)(b)

Allegation E: Force – Det. Eric Meza struck § 87(2)(b) with a baton.

Allegation F: Force – Det. Eric Meza used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) refused to exit his car when the officers tried to remove him from the front seat. It is also undisputed that Det. Meza struck § 87(2)(b) with his asp while positioned in the vehicle's back seat, and that the officers then pulled § 87(2)(b) out of the car onto the street and placed him in handcuffs. § 87(2)(b) was then moved from the street to the nearby sidewalk.

§ 87(2)(b) alleged that as the officers were first trying to pull him out of his car, Sgt. Tomins punched him once in the right temple. He suffered a bruise to this area as a result of the blow. He then alleged that Det. Meza struck him three times on the back of the head. He suffered a laceration to the back of his head as a result of these blows. § 87(2)(b) was then pulled out of the car onto the street and placed in handcuffs. There, he alleged that after he was removed from his vehicle and handcuffed, several officers dragged him bodily to the sidewalk. Once there, an officer whom he did not see kicked him in his lower back. § 87(2)(b) suffered bruising to his ribs as a result of the kick.

All of the officers interviewed denied that any officers punched § 87(2)(b) at any point during the incident. They stated that none of the officers at the driver's door used any force beyond pulling on § 87(2)(b)'s arms and torso to get him out of the driver's seat. Det. Meza stated that after he entered the vehicle, he struck § 87(2)(b) several times on his right arm and shoulder. He did not recall the exact number of blows. He denied that he or any other officer struck § 87(2)(b) on the head with any objects during the incident. Neither Det. Toscano nor Sgt. Tomins recalled seeing Det. Meza or any other officer drawing or using their asps during the incident. The officers denied dragging § 87(2)(b) to the sidewalk or kicking him in the back, stating that § 87(2)(b) walked to the sidewalk on his own power. Det. Toscano further stated that he swept § 87(2)(b)'s leg out from underneath him by the sidewalk in order to make § 87(2)(b) sit down on the sidewalk. He denied using any other force against § 87(2)(b) after he was handcuffed. All three officers confirmed that § 87(2)(b) suffered a laceration to his head, but none of them knew how § 87(2)(b) sustained the injury. None recalled observing any further injuries to § 87(2)(b).

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) No bruising is visible on § 87(2)(b)'s arrest photo (See Board Review: Arrest Photo).

The officers' actions both at the driver's door and within the vehicle itself were not clearly captured in any of the videos. As such, the video could not be used to determine whether Sgt.

Tomins punched § 87(2)(b) or where Det. Meza struck § 87(2)(b) with his asp. The video did, however, capture § 87(2)(b) being moved from the street to the sidewalk. In it, § 87(2)(b) can be seen walking over to the sidewalk on his own power. The officers are not seen dragging him along the ground at any point. Det. Meza is seen kicking § 87(2)(b)'s leg out from beneath him once he moves to the sidewalk.



§ 87(2)(b) Snagit 3.mp4

§ 87(2)(g)

First, § 87(2)(b) stated that he initially tried to flee from the officers because he did not recognize the Warrant Squad officers as police officers because they were in plainclothes but did not have shields displayed. The video, however, shows that the officers had their shields displayed around their necks throughout the incident. Second, § 87(2)(b) stated that he had already gotten into the car and started the engine before officers reached the driver's door. The video shows that multiple officers intercepted § 87(2)(b) at the driver's side before he even managed to get the door open.



§ 87(2)(b) Snagit 1.mp4

§ 87(2)(g)

§ 87(2)(b) alleged that he had shifted the car into drive as soon as he turned on the ignition. As a result, he had to keep his foot held down on the brake to prevent the car from moving forward. While § 87(2)(b) held the brake down, Det. Meza entered the vehicle through the broken front passenger's window. § 87(2)(b) alleged that Det. Meza tried to shift the car back into park, but accidentally put it into reverse instead. Moments later, § 87(2)(b)'s leg was pulled off of the brake, causing the car to move backwards. § 87(2)(b) quickly put his foot back, at which time Det. Meza put the vehicle back into park. He made no mention of the vehicle going forward at any time.



§ 87(2)(b) Snagit 2.mp4

§ 87(2)(g)

In the video, the car can be seen going in reverse at almost the exact moment that Det. Meza breaks the front passenger's window. The vehicle then jerks forward quickly, colliding with another vehicle parked in front of it. This occurs before any officers had an opportunity to enter the front passenger's seat. Furthermore, the car rapidly accelerates when it moved forward and backwards. § 87(2)(g)

Furthermore, the vehicle's front wheels can be seen turning as if to pull the vehicle out of a parking spot. § 87(2)(g)

NYPD Patrol Guide procedure 203-11 states that officers may use limited force against an individual in order to overcome their physical resistance. NYPD Patrol Guide procedure 203-12

states that officers may only use deadly physical force when they have probable cause to believe that they must protect themselves or another from imminent death or serious physical injury (See Board Review: Legal Reference).

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]

§ 87(2)(g) [Redacted]
[Redacted]
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§ 87(2)(g) [Redacted]
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§ 87(2)(g) [Redacted]
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§ 87(2)(g) [Redacted]
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§ 87(2)(g) [Redacted]
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§ 87(2)(g)

Therefore, it is recommended that **Allegations C, E and F** be closed as **exonerated**.

Allegation D: Abuse of Authority – Det. Eric Meza damaged § 87(2)(b)'s property.

It is undisputed that Det. Meza broke the front passenger's window of § 87(2)(b)'s car with his asp. Det. Meza explained that he took this action in order to gain entry into § 87(2)(b)'s car to remove him from the vehicle and prevent him from operating the vehicle while officers were still partially inside of the vehicle.

Officers may damage private property provided that it is necessary in order to carry out a lawful action and conducted in a reasonable manner. Onderdonk v. New York, 170 Misc. 2d 155 (Court of Claims, 1996) (See Board Review: Legal Reference).

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **exonerated**.

Allegation G: Discourtesy – An officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that after he was moved to the sidewalk, an officer referred to him as a “piece of shit.” He did not see which of the officers made this statement, and could not match this officer's voice to any of the officers that he had been interacting with. All of the officers denied that they or any other officer made this statement to § 87(2)(b) § 87(2)(g)

Therefore, it is recommended that **Allegation G** be closed as **officer unidentified**.

Pod:

Investigator: _____
Signature Print Date

Pod Leader: _____

	Title/Signature	Print	Date
Attorney:	_____	_____	_____
	Title/Signature	Print	Date